

IV ① The Bilski case involves a claimed patent on a method for **hedging**^① risk in the energy market. ② The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.

比尔斯基案涉及一项规避能源市场风险方法的专利申请。联邦巡回法院发布了一项不同寻常的指令,宣称此案将由该法院全体12名法官听审,而不是典型的三人组听审,并且宣称法院想要评估一个问题,即,是否需要“重新审议”对道富银行案的裁决。

· 词汇注释与难句分析 ·

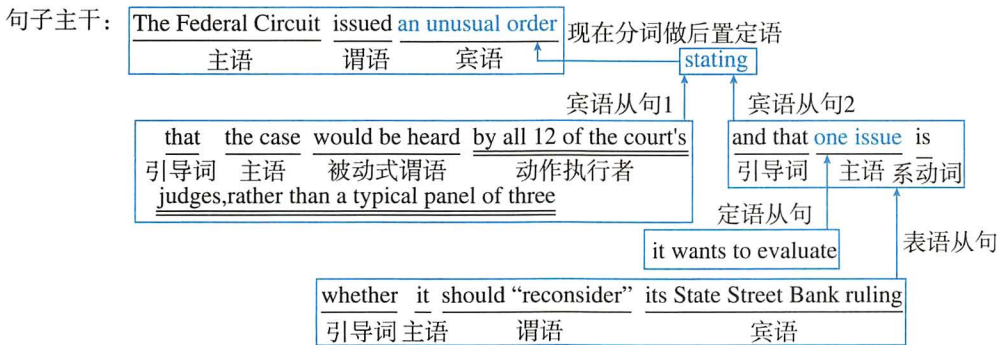
① hedge [hedʒ] v. (商业)以套期保值避免或减轻损失

① energy market (能源市场)

● 经典搭配

② hear a case (审理案件)

The Federal Circuit issued an unusual order stating that the case would be heard by all 12 of the court's judges, rather than a typical panel of three, and that one issue it wants to evaluate is whether it should "reconsider" its State Street Bank ruling.



功能注释: 本句主干为 The Federal Circuit issued an unusual order, 宾语 an unusual order 带有复杂的后置定语 stating that... and that..., 解释“这一不寻常的法令”的内容。从句1中被动式结构的施动者为由 rather than 连接的两个并列短语 all 12 of the court's judges 和 a typical panel of three。从句2主干为 one issue... is...; one issue 后跟定语从句(that) it wants to evaluate; 表语由从句 whether... 担当。

· 语篇分析 ·

第四段(承接第二段)将视角拉回现在,通过“介绍 Bilski 案的特殊审理方式”说明联邦巡回法院当前对此类专利的态度。关键词为:unusual。

①句介绍“Bilski 案”所涉内容:一项规避能源市场风险方法的专利申请。a claimed patent 复现上段①句 business-method claims,意为“专利申请”。

②句叙述联邦巡回法院具体做法:发布了不同寻常的听审指令。两个 that 从句分别从两个方面具体说明不同寻常(unusual)。第一个 that 从句借助取舍结构(... rather than a typical...)强调比尔斯基案的审理形式不同寻常:要求全体法官(12人)听审,而非典型的3人听证;两组对比(all 12 VS three、typical VS unusual)彰显专利法庭对此案的重视程度。

第二个 that 从句借助定语从句(将 one issue 置于句首加以凸显,再以 it want to evaluate 从句进行修饰)强调比尔斯基案的意义非比寻常:借此解决一个重大问题——是否推翻标志商业方法专利开端的道富银行案判决,即,借此案动摇商业方法专利的根基,呼应第二段④句。reconsider 加引号既表“引用”也表“强调”:该观点引自专利法庭决议,客观可靠;同时凸显其可能性影响——推翻道富银行案的裁决。

【深层解读】段末通过大词 issue(“特别重要的议题、争议”)、evaluate(“慎重思考某事的价值从而得出